Statute Law Compilation and Revision (Correction of Prisons and Correctional Services Act, 2023) Notice, 2024

The Law Reviser, in terms of section 11C of the Statute Law Compilation and Revision Act [*Chapter 1:03*], hereby makes the following notice:—

Title

1. This notice may be cited as the Statute Law Compilation and Revision (Correction of Prisons and Correctional Service Act, 2023) Notice, 2024.

Amendments to Prisons and Correctional Service Act, 2023

2. The provisions of the Prisons and Correctional Service Act, 2023 (No. 9 of 2023) specified in the first column of the Schedule are corrected to the extent set out opposite thereto in the second column.

SCHEDULE (*Section 2*)

Provision	*Extent of correction*
Section 1 ("Short title")	by the deletion of "*Chapter 7:21*" and the substitution of "*Chapter 7:23*"
Section 2 ("Interpretation")	In the definition of—
	(i) "disciplinary board" by the deletion of "disciplinary board" and the substitution of "disciplinary trial" and the deletion of "section 44" and the substitution of "section 52".
	(ii) "disciplinary offence" by the deletion of "Part IV" and the substitution of "Part VI".
	(iii) "official visitor" by the deletion of section 89" and the substitution of "section 162".
	(iv) "open correctional facility" by the deletion of "section" and the substitution of "section 28".

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Provision	*Extent of correction*
	(v) "prison" by the insertion immediately after the word "prison" the words "under section 24" and the deletion of "section 24" at the end of the sentence and substitution of the "section 25".
	(vi) "State Parole Board" by the deletion of "section 139" and the substitution of "section 137".
	(vii) "Visiting justice" by the deletion of section 162" and the substitution of "section 160".
	(viii)"young inmate" by the deletion of "under" and the substitution of "above".

Section 3(2)(d) ("Establishment of the Service")	by the deletion of "two" and the substitution of "two thousand".
Section 4(2)(e) ("Principles that guide the Service")	by the insertion of the word "service" immediately after the word "correctional".
Section 5(a) ("Functions of service")	by the deletion of the word "very" and the substitution of the word "every".
Section 11 ("Retirement of correctional officers") (3) *proviso*	by the deletion of "further periods" and the substitution of "a further period".
Section 11(4) *proviso*	by the deletion of "further periods" and the substitution of "a further period".
Section 11(5) *proviso*	by the deletion of "further periods" and the substitution of "a further period".
Section 12(2) ("Promotion to next higher rank on retirement")	by the insertion of the word "commissioned" immediately after the word "retiring".

Provision	*Extent of correction*
Section 16(1) ("Term of office of member of Prisons and Correctional Service Commission"	by the deletion of "prison" and the substitution of "prisons".
Section (17(1) ("Resignation of members of Prisons and Correctional Service Commission")	by the insertion of the word "from" immediately after the word "resign".
Section 19(2)(d) ("Functions of Prisons and Correctional Service Commission")	by the deletion of "prison officer" and the substitution of "correctional officer".
Section 19(3) *proviso*	by the deletion of the word "an" and the substitution of the word "any".
Section 23("Validity of acts and decisions of Prisons and Correctional Service Commission")	by the insertion of the word "the" immediately after "act of".
Section 40(1)(c) ("Prohibition of entry into cantonments")	by the deletion of word "force" and the substitution of the word "unit".
Section 43(2) ("Immunity for act done under authority of warrant")	by the deletion of "suit" and substitution of "lawsuit".
Section 47(1) ("Confinement of an arrested correctional officer")	by the deletion of "section 43" and the substitution of "section 46"; and by the deletion of "prison or correctional quarters" and the substitution of "prison and correctional service quarters"; and by the deletion of "prison or correctional accommodation" and the substitution of "prison and correctional service accommodation".

Provision	*Extent of correction*
Section 49(2)(b) ("Suspension and dismissal of correctional officers")	by the deletion of the word "less" and the substitution of the word "more".
Section 50(1) ("Pay during suspension")	by the deletion of "section 46" and the substitution of "section 49".
Section 50(3)	by the deletion of "section 36" and the substitution of "section 45".
Section 52(2) ("Trial board for correctional officers"	by the deletion of "one or three" and the substitution of "one, three or five".
Section 54(2) ("Accused right to be present")	by the deletion of the word "cause" and the substitution of the word "that" and by the deletion of "section 45" and the substitution of "section 47".
Section 60(2) ("Defence case")	by the deletion of "for through" and the substitution of "or through".
Section 67(1) ("Review of sentence by Commissioner-General"	by the deletion of "section 67" and the substitution of "section 66".
Section 170(1)(b) ("Home leave")	by the deletion of "an other reasons" and the substitution of "any other reasons".
Second Schedule ("Offences against discipline")	in the main heading by the deletion of "section 42" and the substitution of "section 45".
Paragraph 43(2)	by the deletion of "paragraph (2)" and the substitution of "paragraph (1).

EXPLANATORY NOTE

(This note does not form part of the notice, but merely explains its contents)

The object of this notice is to correct textual errors which were contained in the Prisons and Correctional Service Act, 2023 (No. 3 of 2023) as gazetted.

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